

BEFORE THE ADDITIONAL M.A.C.T., KUMTA

Present : Smt.Poornima N. Pai
B.Com., LL.B.,
Member, Addl. MACT, Kumta

Dated this the 1st day of August 2016

M.V.C. No.123/2012

- Petitioners:** 1. Smt.Sudha W/o.Pandurang Harikantra @ Hosakatta
Age: 24 years, Occ: Household
R/o: Hosakatta, Tq: Kumta,
At Present Hiregutti,
Tq: Kumta.
2. Kumar Kishan S/o. Pandurang Harikantra @ Hosakatta
Age: 3 years,
R/o: Hosakatta, Tq: Kumta,
At Present Hiregutti,
Tq: Kumta.
R/by next friend petitioner No.1.
3. Smt.Shashikala W/o.Ishwar Harikantra @ Hosakatta
Age: 54 years, Occ: Household
R/o: Hosakatta, Tq: Kumta,
4. Ishwar S/o.Ganapu Harikantra @ Hosakatta
Age: 58 years,
R/o: Hosakatta, Tq: Kumta,

(By Sri.A.V.Nayak - Advocate)

// Vs. //

Respondents: 1. The Divisional Controller
N.W.K.R.T.C. Sirsi Division
Divisional Office, Hubli Road,
Sirsi.

(By Sri.P.G.Hegde -Advocate)

J U D G M E N T

This petition is filed by the petitioners under Section 166 of M.V.Act, 1988 claiming compensation of Rs.25,00,000/- in respect of death of Pandurang S/o.Ishwar Harikantra @ Hosakatta in the Road Traffic Accident.

2. The petition was filed before the Hon'ble District Judge and Prl.MACT, Karwar and was numbered as MVC No.374/2012 and the same is transferred to this Tribunal and renumbered as MVC.No.123/2012.

3. The brief facts of the petitioners' case are as follows: -

That on 5.10.2009 the deceased Pandurang S/o.Ishwar Harikantra @ Hosakatta was proceeding from Madanageri to Gokarna in vehicle bearing No.KA-47/H-5306 as rider at about 12.30 p.m. when the vehicle ridden by deceased was reached at Moger cross, Talageri one K.S.R.T.C. Bus bearing No.KA-25/F-2341 driven by its driver Ashok Narayan Naik, came from Gokarna side to go to Ankola in rash and negligent manner and coming to his wrong side and dashed to the

vehicle of the deceased bearing No.KA-47/H-5306. Due to this impact, the deceased has sustained grievous injuries on the vital part of the body. Immediately after the accident, deceased was shifted to Government hospital, Gokarna and after first aid treatment, as per the advice of the Doctor, the deceased was further shifted to Manipal hospital, but on the way to Manipal Panduranga has succumbed to the injuries near Honnavar. The dead body was brought to the Bankikodla Government Hospital for post mortem. Thereafter, the dead body was taken to this native place and funeral and other obsequies were made. The petitioners have spent Rs.50,000/- for funeral and other obsequies. The accident had taken place due to sole negligence of the driver of K.S.R.T.C. Bus. There is no negligence on the part of the deceased.

4. It is further contended by the petitioners that, taking disadvantage of sustaining the grievous injuries by the deceased, the driver of K.S.R.T.C. Bus managed to file a complaint against the deceased through one ishwar S/o.Venkatraman Ager. Later by bringing the influence of his department, the driver of K.S.R.T.C bus managed to file a false complaint as well as abated charge sheet. The Police have not conducted the impartial investigation. Later by coming to know that no case is booked against the driver of the bus. One of the eye witness to the incident has filed the private complaint before the learned JMFC., Court at Kumta at P.C.No.205/2009. The learned JMFC., referred the complaint for investigation to C.P.I. Kumta. The C.P.I. Kumta without conducting investigation by himself, he has got done the investigation by P.S.I. Gokarna Police Station. The referred P.C. is registered as

M.Crime No.69/2009 in Gokarna Police Station. The Gokarna Police without proper investigation and without enquiry, not recording statements of real eye-witness, submitted the B summary report to the JMFC., Court, Kumta and also filed the abated charge sheet against the deceased. The complainant has filed protest petition to the B summary submitted by Gokarna Police. In the P.C.No.205/2009 the real eye-witnesses were examined and loopholes in the investigation done by the Gokarna Police station are highlighted. The learned JMFC., Kumta taken the cognizance against the driver of KSRTC Bus and order to issue summons to the accused. The said P.C. is converted in to criminal case No.313/2012 is pending for hearing.

5. It is further contended by the petitioners that, deceased was aged about 25 years and he was working on boat and carrying fish business and earning more than Rs.20,000/- p.m. The deceased has robust health and smart appearance. The deceased has bright future and he has capacity to earn more than Rs.25,000/- p.m. The petitioners were totally depending upon the income of the deceased. The deceased was contributing major part of his earning to the family. Due to the untimely death of the deceased, the petitioners have suffered great mental shock and agony due to the death of bread earner. Till today they have not recovered from the shock sustained by the petitioners. Due to the death of bread earner life of the petitioners are in miserable condition. The petitioner No.1 has lost her husband at the prime age of 24 years and there is no chance of her remarriage. She has lost the hope of remarriage. The petitioner No.2 is minor son

lost the love and affection of his father and able guidance of his father in future carrier. Hence, respondent is liable for payment of compensation to the petitioners. On the above grounds prayed to allow the petition.

6. Having served with the notice, respondent had appeared through its counsel and filed written statement.

The brief averments of written statement of respondent is as under:

Respondent denied the entire averment made in petition and also denied the age, avocation, nature of injuries sustained, period of treatment taken, expenses incurred of treatment, the way and manner in which the accident occurred and the element of rash and negligent driving on the part of the driver of vehicle No.KA-25/F-2341. The compensation claimed by the petitioners is grossly disproportionate and without any basis or rationale. It had contended that as on the date of the accident the driver of bus was driving it in a moderate speed with utmost due care and caution on the left side of the road from Gokarna to Ankola. When the bus was reached near Moger cross, at that time in opposite direction deceased Panduranga Ishwar Harikantra riding his motor cycle bearing No.KA-47/H-5306 with high and great speed rash and negligent manner driving and coming to his wrong side and dashed to respondent's bus. Hence, the accident was happened only due to rash and negligent driving of the

deceased Pandurang only. Therefore, this respondent corporation is not liable to pay any compensation to the petitioners. There is no rash and negligent driving of the respondent bus driver. The insurer of motor cycle bearing No.KA-47/H-5306 is necessary party to the present petition. Hence, without impleading the insurer of above said motor cycle the present petition is not tenable. Therefore the present petition is bad for non-joinder of necessary parties. Therefore, respondent corporation is not liable to pay any compensation to the petitioners. On the above grounds prayed for dismissal of the petition.

7. On the basis of the above rival contentions of the parties, the following issues were framed:

ISSUES

- 1. Whether the petitioners prove that Pandurang S/o.Ishwar Harikantra @ Hosakatta died due to the Road Traffic Accident referred in para No.22 of the petition?*
- 2. Whether the petitioners prove that accident had occurred due to the rash and negligent driving of the KSRTC Bus bearing Reg.No.KA-25/F-2341?*
- 3. Whether the respondent proves that the accident has occurred due to the rash and negligent riding of motor cycle bearing No.KA-47/H-5306 by the deceased himself?*

- 4. Whether the petitioners prove the age, occupation and income of the deceased and their dependency on the deceased?*
- 5. Whether the petitioners are entitled for compensation as claimed in the petition? If yes, what is the quantum and from whom?*
- 6. What order or award?*

8. In order to prove the case of the petitioners, the petitioner No.1 got herself examined as P.W.1 and also examined 4 other witnesses as PW.2 to 5 and got marked Ex.P.1 to P.14. On the other hand, respondent has got examined RW.1 to 4 and got marked Ex.R.1 to R.8(a).

9. Heard Sri.A.V.Nayak Advocate for the petitioners and Sri.P.G.Hegde advocate for respondent.

10. Taking into consideration the oral and documentary evidence placed before this Tribunal, I answer the above issues as follows: -

- | | |
|--------------------|---|
| <i>Issue No.1:</i> | <i>In the Affirmative.</i> |
| <i>Issue No.2:</i> | <i>In the Affirmative.</i> |
| <i>Issue No.3:</i> | <i>In the Negative.</i> |
| <i>Issue No.4:</i> | <i>In the Affirmative.</i> |
| <i>Issue No.5:</i> | <i>In the affirmative</i> |
| <i>Issue No.6:</i> | <i>As per final order, for the following:</i> |

REASONS

11. **ISSUE NO.1 AND 2:** Since these two issues are interconnected with each other and they are taken together for discussions and answer.

12. It is the contention of the petitioners that Pandurang S/o.Ishwar Harikantra @ Hoskatta died due to Road Traffic Accident and the accident has occurred to rash and negligent driving of one KSRTC bus bearing No.KA-25/F-2341. In order to substantiate this fact, the petitioner No.1 Sudha W/o.Pandurang Harikantra @ Hoskatta had got herself examined as PW.1 and filed her affidavit by way of examination-in-chief. She has reiterated the petition averments that her husband Pandurang Harikantra @ Hoskatta was travelling in his motor cycle bearing No.KA-47/H-5306 on 5.10.2009 and when he reached near Moger cross, Talageri one K.S.R.T.C. Bus bearing No.KA-25/F-2341 driven by its driver Ashok Narayan Naik, came from Gokarna side to go to Ankola in rash and negligent manner and coming to his wrong side and dashed to the motor cycle of her husband bearing No.KA-47/H-5306. Due to this impact, her husband sustained grievous injuries. Immediately he was shifted to Government hospital, Gokarna and on the way to Manipal hospital he succumbed to the injuries near Honnavar. The dead body was brought to the Bankikodla Government Hospital for post mortem and thereafter, it was taken to their native place and funeral and other obsequies were conducted. The petitioners have spent Rs.50,000/- towards funeral.

13. It is her contention that the accident had occurred due to rash and negligent driving of KSRTC bus, but using his influence while her husband was in a serious condition, a complaint was lodged by one Ishwar Venkatraman Ager against the deceased Pandurang and abate charge sheet was filed against her husband. It is her contention that one eye-witness of the incident had informed Gokarna police that accident had occurred due to rash and negligent driving of KSRTC Bus driver, but Police refused to take his complaint as already complaint is lodged by one person against her husband. Thereafter, he filed a private complaint in JMFC Kumta in P.C.NO.205/2009 and same was referred to the Circle Inspector Kumta for investigation, he without making investigation himself handed over to PSI Gokarna who filed B report without making any investigation in this regard. B report was challenged by the complainant and JMFC. Kumta has taken cognizance for the offences and B report was rejected and accused was summoned and C.C.No.313/2012 is filed before the JMFC Court for enquiry.

14. To prove this aspect, she has produced first information report and complaint which are marked as Ex.P.1 and 2. The private complaint and protest petition is filed and marked as Ex.P.3 and P.M. report is marked as Ex.P.4. IMV report is marked as Ex.P.5, certified copy of order sheet in C.C.No.313/2012 is marked as Ex.P.6 and 7, the age certificates of herself and her husband are marked as Ex.P.8 and 9 and the death certificate of her husband is marked as Ex.P.10. Birth certificate of 3rd petitioner is marked as Ex.P.11. She has also got examined eye-witness who filed private complaint before the JMFC Court i.e. Vijaya Shankar Hosakatta PW.2 in her favour. Both these

witnesses are thoroughly cross-examined by advocate for respondent. One Laxman Vithoba Gouda has been examined to prove the age of her husband and one Smita S. Jaiwant who is Headmistress of SBS Higher Primary School, Gudkagal has got examined to prove the date of birth of present petitioner No.1. On the other hand, Aravind Hosakatta who is the owner of the boat in which the deceased was working got examined to prove the income of deceased Pandurang. With these documents and evidences, the advocate for petitioners has argued that sufficient materials produced by them to prove that the accident has occurred due to rash and negligent driving of driver of KSRTC Bus.

15. On the other hand, the driver of KSRTC Bus Ashok Narayan Naik got himself examined as PW.1. No documents were produced on his behalf. One Shivanand Vithoba Shet who is ASI of Gokarna Police station got examined as RW.2, one Kiran Kumar who is Circle Inspector of Gokarna circle was examined as RW.3 and one P.A.Suraj Police Circle Inspector of Kumta circle got examined as RW.4. Based on these witnesses, respondent has taken the contention that the charge sheet was abated charge sheet and accident had occurred due to rash and negligent driving of deceased himself. Hence, the respondent is not liable for payment of compensation to the petitioners.

16. Based on these witnesses put forth by both the parties, the Tribunal has to ascertain whether there was rash and negligent driving on the part of the driver of KSRTC Bus. The evidence of PW.1 has got nothing much to say about the accident as she is not eye-witness, but

the evidence of Vijay Hoskatta who is PW.2 alleged to be an eye-witness to the incident has stated that he was standing near Moger cross, Talageri. At that time, this Pandurang Ishwar Harikantra @ Hosakatta came from Madangeri towards Gokarna in his bike. At that time a KSRTC Bus came from Gokarna which was going towards Ankola in high speed, rash and negligent manner to the right side of the road and dashed to the motor cycle of Panduranga, he fell on the road and sustained grievous injuries on the head and other parts of the body. This person has stated that one Jalendar Maneshwar, Mohan Mundangi and this person immediately shifted him in a vehicle to Government hospital, Gokarna and thereafter, he was shifted to Government hospital, Kumta by his relatives. This witness has stated there was no mistake on the part of the deceased Panduranga. He was under the presumption that the case might have been filed against the driver of KSRTC Bus and later he came to know that, the case was filed against the deceased Panduranga. He had enquired in Gokarna Police station, but they denied to take his complaint. Hence, he filed private complaint before the Court and took the cognizance for the offence. This witness is cross-examined by advocate for respondent he has clearly stated that, deceased Panduranga proceeding from Madangeri to Gokarna in speed of 20 kms and there was no rashness in his driving. This witness has totally denied that the bus was stopped at Moger cross to pick up the passengers and there is no bus stop as per the evidence of this witness. There is suggestion put forward by advocate for respondent that Police have investigated as per the complaint issued by KSRTC Bus driver. But it is to be noted the KSRTC Bus driver has not lodged any

complaint. In this case, the complaint was lodged by one Ishwar Venkatraman Ager who is totally stranger.

17. Even the driver of the KSRTC Bus had admitted that he does not know who is this person. The driver who got examined as RW.1 stated that, immediately after the accident he rushed to Gokarna Police station and he was made to sit there in the Police Station. Police went to the spot at 1.00 p.m. in the noon and they came at 4.00 p.m. to the Police station while returning they had brought complaint of the eye-witness from the spot. The driver has clearly stated he does not know who has given complaint to the Police and he did not enquired in this regard. There is also discrepancy in the evidence of bus driver and the respondent's witness. The driver denies that the bus was stopped. The driver of the bus has totally denied that he cannot make this Ishwar Venkatraman Ager as witness in this case as he does not know where about of that person. It is the specific contention of the petitioners that when Panduranga was seriously injured and shifted to the hospital, the KSRTC Bus driver took the help of one Ishwar Ager and filed a false complaint against the deceased Panduranga. The evidence of the driver when compared to the evidence of Police officials gives the doubt about the truth in the contention of the petitioners.

18. The Inspector who received the complaint examined as RW.2 had stated in the evidence that, Ishwar Venkatraman Ager came to the Police station at 13.30 hours and gave the complaint on his own. But the driver had denies this aspect. Hence, these discrepancies

clearly goes to show that there is some foul play by the Police as well as respondent to shift the burden on the deceased. When one of the eye-witness had stepped into the witness box on behalf of the petitioners and states that accident had occurred due to rash and negligent driving of respondent and when the respondent failed to keep that complainant-Ishwar Venkatrama Ager present before the Court to support his complaint. The Tribunal is of the view there was gross negligence on the part of the driver of KSRTC Bus driving the bus in rash and negligent manner. The photograph produced also clarifies this aspect bike is seen fallen in the distance of 10' from the bus which is standing in front of the bike. If at all the version of defence counsel has to be believed the position in the spot would have been different. Hence, considering all these aspect, I am of the opinion that, relying upon the evidence of PW.2 eye-witness and upon the discrepancy in the evidence of respondents, petitioners has clearly proved that the accident has occurred due to rash and negligent driving of driver of KSRTC Bus and death of Pandurang Harikantra is due to injuries sustained in Road Traffic Accident. Hence, I have answered issue No.1 and 2 in "**Affirmative**".

19. **ISUE NO.3:** As already discussed above, the respondent even though, got examined driver Ashok Narayan Naik as RW.1 and Police officials examined as RW.2 to 4. Their evidence is shaky and does not inspire confidence. The statement of driver about lodging the complaint which is not supported by the evidence of RW.2 is also one of the aspect which supports the case of the petitioners. In the written

statement, respondent has taken the contention that the KSRTC Bus was moving and the accident has taken place and in the complaint it is stated that the KSRTC Bus was stopped in the bus stand and deceased hit the KSRTC Bus from hind portion. Even this contradictory statement of respondent creates doubt. It is also observed that when private complaint was filed before the JMFC Court u/Sec.156(3) of Cr.P.C. for investigation to C.P.I. he has transferred said investigation to another C.P.I. P.A.Suraj. He has only conducted spot mahajar. In this case Kiran Kumar RW.3 has conducted other investigation and filed B report. RW.4 has suggested in his cross-examination even though, he received M.C.R. from the court for enquiry, he did not enquire the same and transferred the same to P.S.I. Gokarna himself. The reason given for transfer that he himself was conducting enquiry of C.C.No.66/2009. On this aspect clearly goes to show that the driver was clearly protected by the Police by filing B report in the private complaint and also by filing abate charge sheet against the deceased. The rashness and negligence on the part of the KSRTC Bus driver is apparent on the face of it and respondent failed to prove that the accident has occurred due to the negligence of the deceased. Hence, I have answered this issue in "**Negative**".

20. **ISSUE NO.4:** The present petition is filed by wife of the deceased Smt.Sudha as petitioner No.1, child by name Kumar Kishan aged 3 years, mother of the deceased Shashikala aged 54 years and father of the deceased Ishwar aged 58 years. In order to prove the age of the deceased, the petitioners produced the Ex.P.8 is the school certificate of petitioner No.1 issued by Head Master, Higher primary

School, Hiregutii, Kumta. The date of birth of petitioner No.1 is shown as 11.10.1988. The accident has occurred in the year 2009 i.e. 5.10.2009. Hence, at the time of accident the age of the petitioner No.1 was 21 years. She has also produced school admission certificate of deceased and his date of birth is shown as 11.2.1983. The certificate was issued by Head Master of Govt. Higher Primary School, Gudakagal, Kumta. As per this certificate the deceased was aged 26 years at the time of his death. In order to prove this certificate, the petitioner No.1 got examined Head Masters of both the high schools from where the certificates were issued they were examined as PW.3 and 4. PW.3- Laxman Vithoba Gouda who has issued Ex.P.8 i.e. birth certificate of petitioner No.1 has admitted having issued the same as per school records. Even though, the Head Master has stated that he does not know petitioners personally. The certificate was given by the Head Master who is now transferred and working at Higher Primary School, Devarbole. There is nothing on record to disbelieve the version of this witness as he has issued certificate on the basis of school records. Hence, he need not have any personal information about the complaint, but the register which is maintained in the school have got evidentiary value. PW.4 Smita S.Jaivant who is Head Mistress of SBS Higher Primary School, Gudkagal stated about giving Ex.P.9 document from her school. Even this witness has clearly stated that after she received summons from the Court she verified the concerned register and made herself clear that it is issued by her predecessor Head Mistress worked in the same school. Hence, with the help of the evidence of these two persons and Ex.P.8 and 9, the petitioner No.1 has proved her age as 21

years at the time of death of her husband and age of the deceased 26 years.

21. In order to prove the income and avocation of the deceased, petitioner No.1 has got examined one Aravind Bommayya Hosakatta of Sanikatta, Kumta, he has stated in his evidence that he is owner of one boat named "Shanmukanand" he is doing fishing business in Tadadi harbour since 1999. He requires 5 persons at least while sending the boat for fishing. Deceased Panduranga was also working with him as fisher man the job of catching the fish is expertise in this regard, said Panduranga was working him on his boat since about 10 years and he is paying Rs.20,000/- p.m. as salary to the deceased person. If there was huge catch of fish he would give bonus also. This person was thoroughly cross-examined by advocate for respondent. He has stated in his cross-examination that he has got nearly Rs.15/- to 20/- lakhs income per year. But he is not paying any income tax as after deducting all the expenses nothing would remain to pay the income tax. He has also not filing his returns about his income. Even though, he has stated he has not maintained any register to show how much persons are working under him and what is the salary he is giving to those persons. He has not deviated from his chief-examination averments. He has stated that the information about the working members in the boat is given to the fishing department by him regularly. The suggestion of advocate for respondent that he is the relative of deceased Panduranga and he is deposing falsely on his behalf is totally denied by this witness. Hence, effort has been made by the petitioners to prove the income of the deceased. Even though, this

witness has not produced any document to show that he was paying Rs.20,000/- p.m. to the deceased. The Tribunal has assessed that the deceased was a fisherman who was working under this witness. The job of fisherman requires skill expertise in this regard, no ordinary man can go for fishing in deep sea. Hence, considering this aspect and when there is no contra evidence by the respondent, I am of the opinion that, the Tribunal can hold his income per month as Rs.10,000/- in the absence of documents. When a ordinary coolie is presumed to get Rs.6,000/- p.m. a qualified fisherman can earn more than a coolie. Hence, the Tribunal has taken the income of deceased as Rs.10,000/-.

22. Regarding the dependency petitioner No.1 has stated in her evidence that she had just delivered petitioner No.2 who was only two months when he lost his father. The petitioner No.1 was aged only 21 years and she is not having any other source of income. His entire family is depending on the income of her husband. The age of the father is more than 55 years and deceased was aged 26 years. There was chances of deceased earning more income during his lifetime and taking care of his wife, child and parents at their old age since the petitioner No.1 is not re-married it is clear that she was totally depending on the income of the deceased. Mother has lost her son who was earning and looking after the family. Hence, there are sufficient evidence to show that petitioner No.1 to 3 are depending on the income of the deceased.

23. It is brought in the evidence that, her mother-in-law and father-in-law go for coolie work and they earn Rs.100-150/- per day. There are 3 brothers to the deceased two of them are educated and one person is residing in their house itself. Hence, it can be presumed that these persons are capable of taking care of the family of petitioner No.3 and 4. But petitioner No.1 and 2 being the wife and child are totally depending on the income of the deceased. Hence, I am of the opinion that, petitioner No.1 to 3 are treated as dependents on the income of the deceased and petitioner No.4 cannot be treated as dependants. Accordingly, I have answered this issue in "**Affirmative**".

24. **ISSUE NO.5:** As the Tribunal has already come to the conclusion that the accident had occurred due to the rash and negligent driving of KSRTC Bus driver. The respondent is liable to make good the compensation to the petitioners. In a compensation case the proof required is not prove beyond reasonable doubt as in criminal case, but the Tribunal has to only look for preponderance of probability. Hence, even though, abate charge sheet is filed before the JMFC. Court and the private complaint was filed by one of the eye-witness on the basis of which cognizance is taken and the driver of KSRTC Bus is facing the trial now before the JMFC., Court, but on the basis of evidence given before this Tribunal by the driver as well as Police officials this Tribunal has concluded the driver of respondent is responsible for the accident occurred. Hence, the respondent-corporation is entitled to pay the compensation to the petitioners. Hence, the quantum arrived by the Tribunal is as below:

:: QUANTUM ::

(i) **Transportation of dead body and funeral expenses:**

The petitioner No.1 in the present case has stated in her evidence that the deceased was first shifted to Government hospital, Gokarna and thereafter, he was shifted to Kumta Government hospital in an ambulance. Thereafter, he was advised to take to Manipal hospital, but on the way to Manipal near Honnavar he succumbed to the injuries. Hence, his dead body was brought back to Bankikodla and P.M. was conducted there. Thereafter, his dead body was shifted to their village Hosakatta. she had spent nearly Rs.50,000/- for transportation and funeral expenses. Even though, no documents is produced in this regard. So, taking into consideration the place where the accident had taken place and the shifting expenses and funeral expenses, I am of the opinion that, petitioner No.1 to 3 are entitled for a sum of **Rs.30,000/- towards transportation of dead body and funeral expenses.**

(ii) **Loss of Love and Affection:**

The petitioner No.1 being the wife and petitioner No.2 being the minor child have lost love and affection of her husband and father. Petitioner No.1 has become widow at the young age of 21 years and she is not re-married she has to spend her life as widow and she has totally lost love and affection of her husband.

The petitioner No.2 was only two months old at the time of death of his father and he has totally lost the love and affection of his father. Petitioner No.3 being mother has lost her son and the pain of losing son would be for her lifetime. Hence, Tribunal cannot assess the pain in monetary terms, but as fair compensation. I am of the opinion that, petitioner No.1 to 3 are entitled for just compensation of **Rs.1,00,000/- towards loss of love and affection.**

(ii) **Loss of Consortium:**

The petitioner No.1 being the wife has lost her marital happiness due to the untimely death of her husband in very young age deceased was only 26 years and petitioner No.1 was 21 years. Hence, there is total loss of consortium which cannot be compensated in full, but the Tribunal has assessed the same considering the age of the petitioner No.1 and deceased that she is entitled for a sum of **Rs.1,00,000/- towards loss of consortium.**

(iii) **Loss of dependency:**

As already discussed under issue No.4, the income of the deceased is taken as Rs.10,000/- p.m. which comes to Rs.1,20,000/- per annum. The deceased was a married person and he has looking after his father, mother and his wife at the time of his death.

At this stage the decision relied in **ILR 2015 KARNATAKA 3793** in the cases of (*Smt.M.R.Sushma vs. N.Muniraja and others*) labour addition of 50% has to be added towards future prospects while computing compensation payable towards future prospects, if the victim was less than 40 years at the time of death. It is also held in the said decision that the multiplier is to be used with reference to age of the deceased and there is certainty with regard to the age of the deceased and not with regard to the age of the dependents as there will always be room for dispute as to whether the age of the eldest or youngest or even the average, etc. is to be taken – The Tribunal is justified in taking addition of 50% towards future prospects and adopting the multiplier of '16' considering the age of the deceased. Hence, applying the said decision in this case, the age of the deceased being 26 years is taking into consideration. The accident was taken in the year 2009 and it is appropriate to consider the age of the deceased towards computation of dependency. So, taking applicable the principles of Sarla Varma's case by applying appropriate multiplier of the age group of 26-30 the multiplier would be 16. Hence, the loss of dependency is calculated as under:

Annual income of the deceased:	Rs.1,20,000/-
50% of the income of deceased:	Rs.60,000/-
Deduction of personal expenses:	1/3 rd
Appropriate multiplier:	16

$\text{Rs.}1,20,000 + 60,000/- = \text{Rs.}1,80,000/-$

$\text{Rs.}1,80,000 \times 1/3^{\text{rd}} = \text{Rs.}1,20,000/-$

$\text{Rs.}1,20,000 \times 16 = \text{Rs.}19,20,000/-$

Hence, the petitioner No.1 to 3 are entitled for a sum of **Rs.19,20,000/- towards loss of dependency.**

(iv) **Loss of care to minor:**

The Tribunal has taken into consideration that the petitioner No.2 being at the age of 2 months lost his father and he lost his care and guidance through out his life from father. Hence, petitioner No.2 is entitled for Rs.50,000/- towards loss of care to minor as held in **2013 AIR SCW 5800**. Hence, the petitioner No.2 is entitled for a sum of **Rs.50,000/- towards loss of care to minor.**

25. In the circumstances, the loss assessed by the petitioner No.1 to 3 due to the death of Panduranga S/o.Ishwar Harikantra @ Hoskatta is as follows: -

	Rs.
1. Transportation of dead body & funeral expenses of the deceased	: 30,000-00
2. Loss of love and affection	: 1,00,000-00
3. Loss of consortium	: 1,00,000-00
4. Loss of dependency	: 19,20,000-00
5. Loss of care to minor	: <u>50,000-00</u>
Total	<u>22,00,000-00</u>

Therefore, I hold that the petitioner No.1 to 3 are entitled for a compensation of Rs.22,00,000/-. Hence, I answer the above said issue in the **"Affirmative"**.

26. **ISSUE No.6:** As per S.171 of the Motor Vehicles Act, where any Claims Tribunal allows a claim for compensation, it can direct that in addition to the amount of compensation simple interest shall be paid at such rate and from such date not earlier than the date of making the claim. As per the ruling reported in **ILR 2000 Karnataka 1098**, the case of ***Puttanna and another Vs. Lakshmana and others***, it is held that unless there are special circumstances, interest that has to be awarded on the compensation amount is 6% p.a. from the date of petition till the date of realization. Therefore, I hold that the petitioner is entitled for interest @ 6% p.a. In the result, I proceed to pass the following:

ORDER

The petition filed by the petitioner No.1 to 3 u/Sec.166 of the Motor Vehicles Act is allowed in part with costs against the respondent as follows: -

The claim of petitioner No.4 is hereby rejected.

The petitioner No.1 to 3 are entitled for compensation of a sum of Rs.22,00,000/- (Rupees Twenty Two Lakhs only) with interest @ 6% p.a. from the date of petition till the date of realization from the respondent.

The respondent is directed to pay the said compensation amount with interest as above to the petitioner No.1 to 3 within 30 days from the date of this award.

It is further ordered that petitioner No.1 being the widow is entitled 50%, petitioner No.2 being the minor son is entitled 30% and petitioner No.3 being mother is entitled 20% of the compensation amount.

Out of the said compensation amount of petitioner No.1, Rs.4,00,000/- is ordered to be released in her favour and remaining her share amount with its interest is ordered to be deposited as FD in the ratio of 50:50 in the name of the petitioner No.1 in any of the Nationalized Bank of her choice for a period of 3 years and 5 years respectively with liberty to draw the accrued interest on the said F.D's once in 3 months.

The entire share amount of petitioner No.2 is ordered to be deposited as FD in his name in any of the Nationalized Bank until the minor reaches his majority. The petitioner No.1 is entitled to withdraw the interest periodically towards the expenses of education of the minor.

Out of the share amount of petitioner No.3, Rs.1,00,000/- is ordered to be released in her favour and remaining her share amount with its interest is ordered to be deposited as FD in the name of the petitioner No.3 in any of the Nationalized Bank of her choice for a period of 3 years with liberty to draw the accrued interest on the said F.D. once in 3 months.

The Advocate fee is fixed at Rs.1,000/-.

Draw up award accordingly.

(Dictated to the stenographer, transcription revised, typed by her on computer, corrected by me and then pronounced in the Open Court on this 2nd day of August, 2016)

(Smt. Poornima N. Pai)
Member, Addl. M.A.C.T., Kumta.

ANNEXURE

Witnesses examined for the petitioner :-

P.W.1: Smt.Sudha Pandurang Harikantra @ Hosakatta

P.W.2: Vijay Shankar Hosakatta

P.W.3: Laxman Vithoba Gouda

P.W.4: Smita S. Jaiwant

P.W.5: Aravind Bommayya Hosakatta

Witnesses examined for the respondents :-

R.W.1: Ashok Narayan Naik

R.W.2: Shivanand Vithoba Shet

R.W.3: Kiran Kumar Basavanneppa Nayak

R.W.4: P.A.Suraj

Documents marked for the petitioner :-

Ex.P.1: C.c. of FIR

Ex.P.2: C.c. of Private complaint

Ex.P.3: C.c. of Protest memo

Ex.P.4: C.c. of P.M. report

Ex.P.5: C.c. of IMV Report

Ex.P.6: C.c. of Order sheet in C.C.No.313/2012

Ex.P.7: C.c. of Order sheet in C.C.No.313/2012

Ex.P.8: School certificate of petitioner No.1

Ex.P.9: School certificate of Panduranga

Ex.P.10: Death certificate of Panduranga

Ex.P.11: Attested copy of birth certificate

Ex.P.12: Notarized copy of certificate of registry of fishing boat

Ex.P.13: Attested copy of certificate of registry of fishing boat

Ex.P.14: Attested copy of application of PW.5.

Documents marked for the respondents :-

Ex.R.1: Kannada Prabha Newspaper

Ex.R.1(a): Relevant portion of Ex.R.1

- Ex.R.2: Kannada Janantrang newspaper
- Ex.R.2(a): Relevant portion of Ex.R.2
- Ex.R.3: FIR
- Ex.R.4: Complaint
- Ex.R.5: Spot panchanama
- Ex.R.6: Spot sketch
- Ex.R.7: Panchanama
- Ex.R.7(a): Signature of RW.3
- Ex.R.8: Abate charge sheet
- Ex.R.8(a): Signature of RW.4

Member, Addl. M.A.C.T., Kumta.

